

Tentative Rulings for September 14, 2026 Department 4

**To request oral argument, you must notify Judicial Secretary
Crystal Marias at (760) 904-5722
and inform all other counsel no later than 4:30 p.m.**

This court follows California Rules of Court, Rule 3.1308 (a) (1) for tentative rulings (see Riverside Superior Court Local Rule 3316). Tentative Rulings for each law & motion matter are posted on the Internet by 3:00 p.m. on the court day immediately before the hearing at [Riverside Superior Court-Tentative Rulings](#). If you do not have Internet access, you may obtain the tentative ruling by telephone at (760) 904-5722.

To request oral argument, no later than 4:30 p.m. on the court day before the hearing you must (1) notify the judicial secretary for Department 4 at (760) 904-5722 and (2) inform all other parties of the request and of their need to appear remotely, as stated below. If no request for oral argument is made by 4:30 p.m., the tentative ruling **will become the final ruling** on the matter effective the date of the hearing. **UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.**

For information and instructions on remote appearances via **ZOOM**, visit the court's website at [Riverside Superior Court-Remote Appearances](#)

You may also make a Telephonic Appearance: On the day of the hearing, call into one of the below listed phone numbers, and input the meeting number (followed by #):

- Call-in Numbers: 1-833-568-8864 (Toll Free), 1-669-254-5252,
1-669-216-1590, 1-551-285-1373 or 1-646-828-7666
- Meeting Number: **160 533 0910**

Please **MUTE** your phone until your case is called and it is your turn to speak. It is important to note that you must call fifteen (15) minutes prior to the scheduled hearing time to check in or there may be a delay in your case being heard.

Riverside Superior Court provides official court reporters for hearings on law and motion matters only for litigants who have been granted fee waivers and only upon their timely request. (See General Administrative Order No. 2021-19-1) Other parties desiring a record of the hearing must retain a reporter pro tempore.

1.

CASE #	CASE NAME	HEARING NAME
CVRI2402023	GHOSN VS NEWPORT COFFEE COMPANY LLC	MOTION TO COMPEL TO DEEM ADMITTED ALL MATTERS SPECIFIED IN DEFENDANT'S REQUEST FOR ADMISSIONS, SET NO. ONE

Tentative Ruling: GRANT

Plaintiff to provide verified responses to the requests for admissions within 20 days. If responses are not provided, the requests will be deemed admitted.

No Sanctions.

2.

CASE #	CASE NAME	HEARING NAME
CVRI2402023	GHOSN VS NEWPORT COFFEE COMPANY LLC	MOTION TO COMPEL PLAINTIFF'S ATTENDANCE AND TESTIMONY AT DEPOSITION AND COMPELLING THE PRODUCTION OF DOCUMENTS

Tentative Ruling: GRANT

Plaintiff to appear for her deposition at Defense counsel's office within 30 days from today's date. Plaintiff to provide the documents requested in Defendant's Second Amended Deposition Notice prior to her deposition.

No Sanctions.

3.

CASE #	CASE NAME	HEARING NAME
CVRI2402023	GHOSN VS NEWPORT COFFEE COMPANY LLC	MOTION TO COMPEL RESPONSES TO DEFENDANT'S FORM INTERROGATORIES - EMPLOYMENT, SET NO. ONE
CVRI2402023	GHOSN VS NEWPORT COFFEE COMPANY LLC	MOTION TO COMPEL RESPONSES TO DEFENDANT'S SPECIAL INTERROGATORIES, SET NO. ONE

Tentative Ruling: GRANT.

Code compliant, verified responses to the interrogatories are ordered within 20 days.

No Sanctions.

4.

CASE #	CASE NAME	HEARING NAME
CVRI2502110	BANKS VS RIVERSIDE COMMUNITY HOSPITAL	DEMURRER

Tentative Ruling:

Defendant Kindred has agreed to withdraw its demurrer to the 7th, 9th, and 10th causes of action. The demurrer now is to the 1st cause of action for Medical Malpractice, the 3rd cause of action for Professional Negligence, the 4th cause of action for Negligence and the 5th cause of action for Negligent Hiring, Retention, & Supervision.

The elements of a cause of action for medical malpractice and professional negligence are the same. Kindred maintains that the facts alleged are not sufficient to state a cause of action because the allegations are conclusions rather than ultimate facts, however, the law allows less particularity of pleadings where the defendant possesses superior knowledge of the facts. Here, the First Amended Complaint sufficiently alleges ultimate facts for these causes of action to survive demurrer.

OVERRULE the demurrer as to causes of action 1 and 3.

Plaintiff has also alleged sufficient facts to state a claim for negligent hiring, retention and supervision.

OVERRULE the demurrer to the 5th cause of action.

As to the 4th cause of action for Negligence, Defendant Kindred argues that this claim is duplicative of the cause of action for Professional Negligence. The distinction between ordinary negligence and professional negligence is an important one, as they are governed by different standards of care and damage limitations. (See Civ. Code § 3333.2.) Accordingly, Plaintiff needs to allege the manner in which her claim for ordinary negligence does not sound in professional negligence.

SUSTAIN the demurrer to the 4th cause of action, with 30 days leave to amend.